

25NNCV02550 25NNCV02550

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NNCV02550 Hearing Date: August 21, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO COMPEL INITIAL RESPOSES; REQUEST FOR SANCTIONS AGAINST DEFENDANT
ROYAL

Hearing Date: 8/21/26

CASE NO.: 25NNCV02550

CASE NAME: Rose Gloria by and through her Successor-in-Interest,
Yolanda Gonzalez, et al. vs Royal Palms Post Acute, LLC, et al.

Moving Party: Plaintiff, Rose Gloria, by and through her
Successor-in-Interest, Yolanda Gonzalez

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY

BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is an elder abuse action. Decedent Rose Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez (Plaintiff), and her children, Yolanda Gonzalez, Jose Gonzalez, Lisa White, Edward Gloria, Cynthia Castro, and Michael Gloria have brought this action against defendants Royal Palms Post Acute, LLC, (Defendant Royal) Palms Licensee 3, LLC, Beecan Health, LLC, and Steeve Henry, the owners and operators of the skilled nursing facility, Royal Palms Post Acute (Facility), where Ms. Gloria was a resident patient. On April 14, 2025, Plaintiff filed a Complaint against all defendants alleging Wrongful Death.

On July 1, 2026, Plaintiff filed the instant motions to compel initial responses to Form Interrogatories (Res ID: 1269), Special Interrogatories (Res ID: 2683), and Requests for Production of Documents (RPDs) (Res ID: 6650) served on Defendant Royal.

No oppositions have been filed as of August 14, 2026.

LEGAL

STANDARD

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ.

Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko, supra, 148 Cal.App.4th at 411.)

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

DISCUSSION

Motion to Compel Initial Responses

Plaintiff

contends that Defendant Royal failed to timely respond to Form Interrogatories, Special Interrogatories, and RPDs on or by the statutory deadline. (Mot., p. 4.)

Here, Plaintiff's

counsel served Defendant Royal with the Form Interrogatories, Special Interrogatories, and RPDs by electronic service on March 13, 2026. (Mot. Compel Form Interrog., Horii Decl., ¶ 2; Mot. Compel Special Interrog., Horii Decl., ¶ 2; Mot., Compel RPDs, Horii Decl., ¶ 2.) Plaintiff contends that initial responses were due April 14, 2026. (Horii Decl., ¶ 3.) On April 15, Plaintiff's counsel provided Defendant Royal with a two-week extension via email, but Defendant Royal again failed to respond. (Horii Decl., ¶ 4.) On April 22, 2026, Plaintiff's counsel left a voicemail and on April 23, 2026, spoke with Defendant Royal's counsel via telephone and gave a subsequent extension making responses due May 15, 2026. (Horii Decl., ¶¶ 5-6.) Defendant Royal again failed to respond. (Ibid.) As of July 1, 2026, Plaintiff declares that Defendant Royal has not provided verified responses. (Horii Decl., ¶ 7.)

Since Defendant

Royal was properly served and failed to respond to discovery requests by the statutory deadline, Plaintiff is entitled to an order compelling Defendant Royal to provide responses without objections to Form Interrogatories, Special Interrogatories, and RPDs.

Accordingly, the motion to compel initial responses is GRANTED.

Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Defendant

Royal's failure to comply with discovery requests necessitated the motion, and the conduct is subject to sanctions. (See Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a).) Moreover, The Court finds Plaintiff's Notice of Motion complies with Code of Civil Procedure section 2023.040.

Plaintiff's

counsel requests sanctions in the amount of \$633.54 for each motion. (Mot., p. 6.) Plaintiff has filed a total of 12 motions to compel initial responses from four total defendants, six of which are being heard on August 21, 2026, and the remaining 6 being heard on August 28, 2026. For all 12 motions, Plaintiff seeks attorney's fees of \$6,882.50 plus \$720 (\$60.00 x 12) in filing costs, totaling \$7,602.50. (Horii Decl., ¶¶ 10-11.) The \$6,882.50 in fees reflects 12.0 hours

spent drafting the motions, 3.0 hours anticipated drafting replies, and 1 hour spent attending the hearings at a rate of \$395.00 per hour; plus, 0.75 hours spent by Partner Kathryn Cassano, Esq. reviewing the motions at a rate of \$750.00 per hour. (Horii Decl., ¶ 11.) Plaintiff divides the total fees and costs requested, \$7,602.00, by 12 motions to reflect \$633.54 per motion. (Ibid.)

The Court, in its discretion, will only award \$575 to reflect one hour at a rate of \$395 for the 3 motions filed against Defendant Royal plus \$60 filing fees for each motion. All motions are substantially similar and straight forward.

Accordingly, the Court GRANTS Plaintiff's request for imposition of sanctions against Defendants Royal in the amount of \$575.

CONCLUSION AND ORDER

Plaintiff Rose

Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez's motion to deem RFAs admitted is GRANTED.

Plaintiff Rose

Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez's request for sanctions is GRANTED in the amount of \$575, to be paid by Defendant Royal to Plaintiff 30 days from this ruling.

MOVING PARTY to submit a proposed consistent with this ruling and provide notice of this order.

MOTION TO COMPEL INITIAL RESPONSES; REQUEST FOR SANCTIONS AGAINST DEFENDANT PALMS

Hearing Date: 8/21/26

CASE NO.: 25NNCV02550

CASE NAME: Rose Gloria by and through her Successor-in-Interest, Yolanda Gonzalez, et al. vs Royal Palms Post Acute, LLC, et al.

Moving Party: Plaintiff, Rose Gloria, by and through her
Successor-in-Interest, Yolanda Gonzalez

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT.

BACKGROUND

This is an elder abuse action. Decedent Rose Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez (Plaintiff), and her children, Yolanda Gonzalez, Jose Gonzalez, Lisa White, Edward Gloria, Cynthia Castro, and Michael Gloria have brought this action against defendants Royal Palms Post Acute, LLC, Palms Licensee 3 (Defendant Palms), LLC, Beecan Health, LLC, and Steeve Henry, the owners and operators of the skilled nursing facility, Royal Palms Post Acute (Facility), where Ms. Gloria was a resident patient.. On April 14, 2025, Plaintiff filed a Complaint against all defendants alleging Wrongful Death.

On July 1, 2026, Plaintiff filed the instant motions to compel initial responses to Form Interrogatories (Res ID: 1269), Special Interrogatories (Res ID: 2683), and Requests for Production of Documents (RPDs) (Res ID: 6650) served on Defendant Palms.

No oppositions have been filed as of August 17, 2026.

LEGAL STANDARD

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other

than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko, supra, 148 Cal.App.4th at 411.)

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

DISCUSSION

Motion to Compel Initial Responses

Plaintiff

contends that Defendant Palms failed to timely respond to Form Interrogatories, Special Interrogatories, and RPDs on or by the statutory deadline. (Mot., p. 4.)

Here, Plaintiff's

counsel served Defendant Palms with the Form Interrogatories, Special Interrogatories, and RPDs by electronic service on March 13, 2026. (Mot. Compel Form Interrog., Horii Decl., ¶ 2; Mot. Compel Special Interrog., Horii Decl., ¶ 2; Mot., Compel RPDs, Horii Decl., ¶ 2.) Plaintiff contends that initial responses were due April 14, 2026. (Horii Decl., ¶ 3.) On April 15, Plaintiff's counsel provided Defendant Palms with a two-week extension via email, but Defendant Palms again failed to respond. (Horii Decl., ¶ 4.) On April 22, 2026, Plaintiff's counsel left a voicemail and on April 24, 2026, spoke with Defendant Palms' counsel via telephone and gave a subsequent extension making responses due May 15, 2026. (Horii Decl., ¶¶ 5-6.) Defendant Palms again failed to respond. (Ibid.) As of July 1, 2026, Plaintiff declares that Defendant Palms has not provided verified responses. (Horii Decl., ¶ 7.)

Since Defendant Palms

was properly served and failed to respond to discovery requests by the statutory deadline, Plaintiff is entitled to an order compelling Defendant Palms to provide responses without objections to Form Interrogatories, Special Interrogatories, and RPDs.

Accordingly, the

motion to compel initial responses is GRANTED.

Sanctions

The Court shall

impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a

sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Defendant Palms’

failure to comply with discovery requests necessitated the motion, and the conduct is subject to sanctions. (See Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a).) Moreover, The Court finds Plaintiff’s Notice of Motion complies with Code of Civil Procedure section 2023.040.

Plaintiff’s

counsel requests sanctions in the amount of \$633.54 for each motion. (Mot., p. 6.) Plaintiff has filed a total of 12 motions to compel initial responses from four total defendants, six of which are being heard on August 21, 2026, and the remaining 6 being heard on August 28, 2026. For all 12 motions, Plaintiff seeks attorney’s fees of \$6,882.50 plus \$720 (\$60.00 x 12) in filing costs, totaling \$7,602.50. (Horii Decl., ¶¶ 10-11.) The \$6,882.50 in fees reflects 12.0 hours

spent drafting the motions, 3.0 hours anticipated drafting replies, and 1 hour spent attending a hearing at a rate of \$395.00 per hour; plus, 0.75 hours spent by Partner Kathryn Cassano, Esq. reviewing the motions at a rate of \$750.00 per hour. (Horii Decl., ¶ 11.) Plaintiff divides the total fees and costs requested, \$7,602.00, by 12 to reflect \$633.54 per motion. (Ibid.)

The Court, in its discretion, will only award \$575 to reflect one hour at a rate of \$395 for the 3 motions filed against Defendant Palms plus \$60 filing fees for each motion. All motions are substantially similar and straight forward.

Accordingly, the Court GRANTS Plaintiff's request for imposition of sanctions against Defendant Palms, in the amount of \$575.

CONCLUSION AND ORDER

Plaintiff Rose

Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez's motion to deem RFAs admitted is GRANTED.

Plaintiff Rose

Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez's request for sanctions is GRANTED in the amount of \$575, to be paid by Defendant Palms to Plaintiff 30 days from this ruling.

MOVING PARTY to submit a proposed order consistent with this ruling and provide notice of this order.